Consider and Adopt Revisions to Board Policy FEA (Local)

Proposal:
That the Board of Trustees consider and adopt revisions to Local Board Policy FEA Attendance Compulsory Attendance

Explanation:
The Administration recommends consideration and adoption of the revisions to Board Policy FEA Attendance Compulsory Attendance. The Administration recommends that the updated Local Board Policy FEA (Local) be adopted as presented.

Policy Reference: FEA Local

Recommended by:

Dr. David Vinson
Superintendent of Schools

Conroe ISD (conroe-isd)

Attendance: Compulsory Attendance (FEA)

Policy Type: Local Policy

Date Issued: 2023-10-30

Version: 1

Students in violation of the compulsory attendance law shall be reported to the District attendance officer, who may institute court action as provided by law.

Excused Absences

In addition to excused absences required by law, the District shall excuse absences for the following purposes. A student shall be required to submit verification of these absences in accordance with administrative regulations.

Higher Education Visits

The District shall excuse a student for up to two days during the student's junior year and up to two days during the student's senior year to visit an accredited institution of higher education.

Career Investigation

The District shall excuse a student for up to two days during the student's junior year and up to two days during the student's senior year to visit a professional's workplace for purposes of exploring the student's interest in pursuing a career in that professional's field.

Armed Services Enlistment

The District shall excuse a student 17 years of age or older for up to four days during his or her enrollment in high school for activities related to pursuing enlistment in a branch of the U.S. Armed Services or Texas National Guard.

Early Voting Or Election Clerk

The District shall excuse a student for up to two days per school year to serve as an early voting or election clerk.

Learner Or Driver's License

The District shall excuse a student 15 years of age or older for one day during his or her enrollment in high school for each of the following:

- Visiting a driver's license office to obtain a learner license; or
- Visiting a driver's license office to obtain a driver's license.

[For extracurricular activity absences, see FM.]

Withdrawal For Nonattendance

The District may initiate withdrawal of a student under the age of 19 for nonattendance under the following conditions:

1. The student has been absent 10 consecutive school days; and
2. Repeated efforts by the attendance officer and/or principal to locate the student have been unsuccessful.

[For District-initiated withdrawal of students 19 or older, see FEA(LEGAL).]

Students Attending Homeschools

Students who are homeschooled are exempt from the compulsory attendance law to the same extent as students enrolled in other private schools.

Adequate documentation of homeschooling for withdrawal shall consist of either a statement of withdrawal in accordance with FD(LOCAL) indicating the date homeschooling began, or a signed and dated letter from a parent or guardian indicating that his or her child is being homeschooled and the date the homeschooling began.

The District may request from a parent or guardian a letter of assurance that a child is being educated using a curriculum designed to meet basic education goals of reading, spelling, grammar, mathematics, and a study of good citizenship.

Enforcing Compulsory Attendance

If a parent or guardian refuses to submit a requested statement or letter, or if the District has evidence that a school-aged child is not being homeschooled within legal requirements, the District may investigate further and, if warranted, shall pursue legal action to enforce the compulsory attendance law.

Real Time Course

Definition

For the purpose of this section, released time course shall mean a course in religious instruction offered by a private entity.

Release Time Course Excused Absence

The District shall adopt a procedure for a parent or legal guardian to request their student to be excused from attending school to attend a released time course for at least one but not more than five hours per week. The District shall not interfere with the ability of the student's parent or legal guardian to request or access a released time course for their student.

As part of the District procedure, the District will require the student's parent or legal guardian to provide written consent for the student to attend the released time course.

District Prohibitions

The District shall prohibit:

1. The use of District or school funds, to facilitate the provision of a released time course, excluding de minimis costs.
2. The private entity from offering the released time course on District or school property, unless permitted under a neutral Board Policy or District procedure that provides equal access to community organizations to use District or school property. See School Board Policy GKD (Local).

Transportation

It shall be the responsibility of the private entity providing the course, the parent or legal guardian, or the student to arrange, assume responsibility, and provide transportation to and from the location where the released time course is offered. This shall include transportation for students with disabilities.

Private Entity Responsibility

The private entity offering the released time course shall:

1. Make appropriate provisions for and assume full liability for the student while the student is under its supervision and private care;
2. Monitor student attendance;
3. Report any student failure to attend the real time course to the District as soon as practicable; and
4. Maintain accurate attendance records and provide them on a regular basis to the District.

Student Responsibility

The student shall assume responsibility for any District schoolwork during the student's absence and for continuous attendance at the real time course.

The District shall adopt procedures to implement this policy.

DATE ISSUED: ~~2023-10-30~~

UPDATE: 1

FEA (Local Policy)

LOCAL POLICY: FEA

Amended Board Policy:

Real Time Course

Definition

For the purpose of this section, released time course shall mean a course in religious instruction offered by a private entity.

Release Time Course Excused Absence

The District shall adopt a procedure for a parent or legal guardian to request their student to be excused from attending school to attend a released time course for at least one but not more than five hours per week. The District shall not interfere with the ability of the student's parent or legal guardian to request or access a released time course for their student.

As part of the District procedure, the District will require the student's parent or legal guardian to provide written consent for the student to attend the released time course.

District Prohibitions

The District shall prohibit:

1. The use of District or school funds, to facilitate the provision of a released time course, excluding de minimis costs.

Legislative Basis for the Policy Change

Origins of the Code Revisions: Senate Bill 1049

Education Code § EXCUSED ABSENCE TO ATTEND RELEASED TIME COURSE.
(a) In this section, "released time course" means a course in religious instruction offered by a private entity.
(b) A school district or open-enrollment charter school shall, on the request of a parent or legal guardian of a student enrolled at the district or school and subject to the policy adopted under Subsection (c), excuse the student from attending school to attend a released time course for at least one but not more than five hours a week.
(c) Each school district and open-enrollment charter school shall adopt a policy for excusing a student enrolled at the district or school from attending school to attend a released time course. The policy:
(1) must require:
(A) the student's parent or legal guardian to provide written consent for the student to attend the released time course;
(B) the private entity offering the released time course to maintain attendance records and make the records available to the district or school at which the student is enrolled;
(C) the private entity, parent or legal guardian, or student to assume responsibility for transportation, including transportation for a student with a disability, to and from any location at which the released time course is offered;
(D) the private entity to make provisions for and assume liability for the student enrolled in the released time course while the student is under the private entity's care; and
(E) the student to assume responsibility for any schoolwork issued during the student's absence;
(2) must prohibit:
(A) the district or school from using district or school funds, excluding de minimis costs, to facilitate the provision of a released time course; and

2. The private entity from offering the released time course on District or school property, unless permitted under a neutral Board Policy or District procedure that provides equal access to community organizations to use District or school property. See School Board Policy GKD (Local). **Transportation** It shall be the responsibility of the private entity providing the course, the parent or legal guardian, or the student to arrange, assume responsibility, and provide transportation to and from the location where the released time course is offered. This shall include transportation for students with disabilities. **Private Entity Responsibility** The private entity offering the released time course shall: 1. Make appropriate provisions for and assume full liability for the student while the student is under its supervision and private care; 2. Monitor student attendance; 3. Report any student failure to attend the real time course to the District as soon as practicable; and 4. Maintain accurate attendance records and provide them on a regular basis to the District. **Student Responsibility**	(B) the private entity from offering the released time course on district or school property, unless permitted under a neutral policy of equal access that allows community organizations to use district or school property; and (3) may not interfere with the ability of the student's parent or legal guardian to request or access a released time course for the student. Added by Acts 2025, 89th Leg., R.S., Ch. 1140 (S.B. 1049), Sec. 2, eff. September 1, 2025.

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The student shall assume responsibility for any District schoolwork during the student's absence and for continuous attendance at the real time course. The District shall adopt procedures to implement this policy.	